

Chapter 1: Your License to Drive

Who May Drive a Motor Vehicle in Texas?

Individuals who meet the following criteria may drive a motor vehicle in Texas.

Residents:

- Texas residents who have a valid Texas driver license
- New residents who are exchanging a valid out-of-state license have 90 days to establish residency in Texas in order to secure a Texas driver license.
- Any person, while driving or operating any road machine, farm tractor, or implement of husbandry temporarily operated or moved on a highway is exempt from having a Texas license, unless the vehicle is a commercial motor vehicle

Nonresidents:

- Any nonresident who is at least 16 years of age and possesses a valid driver license issued in the nonresident's home state or Canadian province. Nonresidents at least 16 years of age who meet these criteria may drive a vehicle permitted to be operated with a Class C or Class M driver license in Texas
- Nonresidents who are at least 18 years of age may drive any vehicle in Texas if they are legally licensed to drive such a vehicle in their home state or country, and the home state or country grants like recognition (reciprocity) to citizens of Texas

Military:

- The driver of an official U.S. or state military service motor vehicle may drive a vehicle without a valid Texas driver license, unless the vehicle is a commercial motor vehicle
- A nonresident on active duty in the U.S. armed forces, the member's spouse, or dependent child who has a valid license issued by his/her home state
- Any person on active military duty who holds a valid driver license issued by the U.S. armed forces in a foreign country may drive a motor vehicle in Texas for 90 days from the date of their return to the U.S.
- Unless a license is suspended, cancelled, revoked or denied, a Texas driver license held by any person who enters or who is in the U.S. armed forces will remain valid as long as the:
 - Service continues; and
 - Person remains absent from Texas and the absence does not exceed 90 days from the date the licensee is honorably separated from service or returns to Texas

Special Note:
You may not receive a Texas driver license until all valid driver licenses and IDs issued are surrendered.

Types of Texas Driver Licenses

Learner License (Instruction Permit)

A learner license, also known as an instruction permit, allows a student driver to legally practice driving when accompanied by a licensed driver. The licensed driver must be at least 21 years of age with at least one year of driving experience, must occupy the seat beside the driver, and cannot be intoxicated, asleep, or engaging in any activity that prevents observation and response to the actions of the driver. A learner license will indicate "Learner License" on the front of the card and expire on the minor's 18th birthday. A person applying for a learner license must:

1. Be at least 15 but no more than 18 years of age
2. Complete the classroom portion of a driver education course, vision exam, and knowledge exam
3. Meet all other requirements for a first time driver license (original) applicant

Table 1: Learner License

Minimum Age	Fee*	Expiration
15 with driver education	\$15 for license + \$1 fee = \$16	For applicants less than 18 years of age, the license expires on their 18th birthday

*A \$1 administrative fee is included in most transactions. However, if you are completing multiple transactions at the same time, either in-person, telephone or online, then you will only be charged the \$1 administrative fee once. A \$1 administrative fee is not charged for transactions made through the mail.

Applicants 18 years of age and older who wish to legally practice driving are issued a Class C license with the same restrictions as a learner license. The license is generally valid for eight years and costs \$32 plus a \$1 administrative fee.

Verification of Enrollment and Attendance (VOE) Form

If you are under 18 years of age and applying for your first Texas driver license, learner license, or provisional license, you must provide evidence that you: